

JUDGE OETKEN

11 CIV 7717

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

-----X
MIGUEL MERCEDES and
JESTEN WYATT,

Plaintiffs.

-against-

THE CITY OF NEW YORK, POLICE
OFFICER WHITLOCK,
POLICE OFFICER RAYMOND
CURBELO, POLICE OFFICER JOSE
GENAO, POLICE OFFICER THOMAS
FARRELY and POLICE OFFICER
JOHN DOE, Individually and in their Official
Capacities,

Defendants.
-----X

**COMPLAINT AND
DEMAND FOR JURY TRIAL**



Plaintiffs, MIGUEL MERCEDES and JESTEN WYATT, by and through their attorneys,
Fisher, Byrialsen & Kreizer PLLC, complaining of the defendants herein, respectfully shows
the Court and alleges:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages, and
attorney's fees pursuant to 42 U.S.C. §§ 1981, 1983, 1985 and 1988, for the wrongful acts of
Defendants THE CITY OF NEW YORK, POLICE OFFICER WHITLOCK, POLICE OFFICE
RAYMOND CURBELO, POLICE OFFICER THOMAS FARRELY POLICE OFFICER JOSE
GENAO, and POLICE OFFICER JOHN DOE as Officers of the New York City Police
Department, acting under color of state law and pursuant to their authority, in violation of
Plaintiff's rights secured by the Civil Rights Act of 1871, 42 U.S.C. §§ 1981, 1983, 1985, 1988;

by the United States Constitution, including its Fourth, Fifth, Eighth, and Fourteenth Amendments; and by the laws and Constitution of the State of New York.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. §§1981, 1983, 1985 and 1988, and the Fourth, Fifth, Eighth, and Fourteenth Amendments to the United States Constitution, and the constitutional, statutory, and common laws of the State of New York.

3. Jurisdiction is invoked herein pursuant to the aforementioned statutory and constitutional provisions and pursuant to 28 U.S.C. §§ 1331, 1343, this being an action seeking redress for the violation of the plaintiff's constitutional and civil rights.

4. Plaintiff further invokes this Court's pendent jurisdiction over any and all state-law claims and causes of action which derive from the same nucleus of operative facts that give rise to the federally based claims and causes of action pursuant to 28 U.S.C. § 1367.

VENUE

5. Venue is properly laid in this District under 28 U.S.C. § 1391(b), this being the District in which the claim arose.

NOTICE OF CLAIM

6. Plaintiff Miguel Mercedes filed a Notice of Claim with the Comptroller of the City of New York on or about September 15, 2010 within 90 days of the events complained of herein. More than 30 days have elapsed since the filing of the Notice of Claim, and adjustment or payment thereof has been neglected or refused.

TRIAL BY JURY

7. Plaintiffs demand a trial by jury on each and every one of their claims as pled herein pursuant to Fed. R. Civ. P. 38(b).

PARTIES

8. At all times relevant hereto Plaintiff Miguel Mercedes was and is a citizen of the United States and was residing in Manhattan, New York at the time of the incident.

9. At all times relevant hereto Plaintiff Jesten Wyatt was and is a citizen of the United States and was residing in Manhattan, New York at the time of the incident.

10. At all times relevant hereto defendant The City of New York (hereinafter, "NYC") was and is a municipality of the State of New York and owns, operates, manages, directs, and controls the New York City Police Department, which employs the other named Defendants.

11. At all times relevant to this action, Defendants, POLICE OFFICER WHITLOCK, POLICE OFFICER RAYMOND CURBELO, POLICE OFFICER THOMAS FARRELLY POLICE OFFICER JOSE GENAO, and POLICE OFFICER JOHN DOE, are and were police officers employed by the New York City Police Department (hereinafter, "NYPD"), and acting under color of state law. They are being sued in both their individual and official capacities.

12. At all times relevant hereto and in all their actions described herein, Defendants, POLICE OFFICER WHITLOCK, POLICE OFFICER RAYMOND CURBELO, POLICE OFFICER THOMAS FARRELLY POLICE OFFICER JOSE GENAO, and POLICE OFFICER JOHN DOE, were acting under color of statutes, ordinances, regulations, policies, customs, and usages of the NYPD and NYC, pursuant to their authority as employees, servants, and agents of

the NYPD within the scope of employment and incidental to their otherwise lawful duties and functions as employees, servants, agents, and police officers.

13. NYC was responsible for the hiring, training, supervision, discipline, retention, and promotion of the police officers, sergeants, and/or employees of the NYPD. They are being sued both in their individual and official capacity.

FACTS

14. On August 14, 2010, at approximately 8:00 p.m., Plaintiff Miguel Mercedes, a Hispanic male, was sitting in the passenger's seat of a car.

15. Mr. Mercedes' friend was driving said vehicle to a public lot on 162nd street, between Broadway and St. Nicholas.

16. Plaintiff Jesten Wyatt was sitting in the back seat.

17. Mr. Mercedes and his friends started out travelling on 163rd street and Broadway.

18. When Mr. Mercedes and his friends pulled into the public lot, an officer opened the front passenger door of the car where Mr. Mercedes was seated.

19. Without making any verbal commands, Sgt. Whitlock pulled Mr. Mercedes out of the car by his neck and pushed him to another defendant officer who searched Mr. Mercedes.

20. One of the defendant officers searched Mr. Mercedes, reached in his boxers, and found a Ziploc bag containing pills.

21. The defendant officer then pushed Mr. Mercedes, which caused him to lose his balance.

22. As a result of the officer pushing Mr. Mercedes, Mr. Mercedes began to fall and in falling, stepped on the shoe of the officer and touched the officer's arm.

23. One of the other police officers then repeatedly punched Mr. Mercedes in the face

and ribs.

24. While Mr. Mercedes was on the ground, the Caucasian officer then wrapped his legs around Mr. Mercedes' legs and placed him in a leg-lock.

25. Mr. Mercedes did not resist the officers in any way.

26. Defendant Sgt. Whitlock then handcuffed Mr. Mercedes while two other officers assisted.

27. After he was placed in handcuffs, one of the defendant officers punched Mr. Mercedes three times in the ribs.

28. After Mr. Mercedes was handcuffed, Sgt. Whitlock asked another officer to get mace.

29. Sgt. Whitlock then sprayed mace into Mr. Mercedes' face twice for approximately five seconds.

30. During this entire incident, Mr. Mercedes was screaming due to the pain from the punches and mace.

31. Three officers then lifted Mr. Mercedes up with one officer holding his hands, which were in handcuffs behind his back, and another officer holding his feet and then threw him in the marked van.

32. The officers arrested Alejandro and Jesten, and put them in the van with Mr. Mercedes. One of the officers took Alejandro's car.

33. The officers drove Mr. Mercedes and his friends to the 33rd precinct. On the way to the precinct, the defendant officers told Mr. Mercedes that they should have beat him more.

34. Mr. Mercedes arrived at the 33rd precinct at approximately 8:30 p.m.

35. Mr. Mercedes was placed in his own cell and Jesten Wyatt was placed in a cell with Alejandro.

36. After Mr. Mercedes was placed in the cell, he began to have an asthma attack.

37. Defendants called an ambulance.

38. Defendants also asked Mr. Wyatt if he had asthma.

39. Mr. Wyatt informed the officers that he suffered from asthma since he was young, so they told him he should also go to the hospital.

40. Mr. Mercedes and Mr. Wyatt were taken by ambulance to Columbia Presbyterian Hospital.

41. The EMS workers cleaned Mr. Mercedes' eyes with water.

42. A nurse took Mr. Mercedes' vitals and gave him an asthma pump.

43. Mr. Mercedes told the nurse about pain in his shoulder, but the defendant officer told the nurse not to examine his shoulder.

44. The nurse did not look at any of Mr. Mercedes' other injuries. Mr. Mercedes arrived back at the 33rd precinct at approximately 10:45 p.m.

45. Mr. Wyatt was screened by a doctor but did not receive any treatment.

46. Mr. Mercedes and Mr. Wyatt were then returned to the precinct.

47. While at the precinct, Mr. Mercedes and Mr. Wyatt both were photographed and fingerprinted.

48. At no time during his detention at the precinct or trip to the hospital did the officers advise Mr. Wyatt why he was under arrest and detained.

49. Mr. Mercedes and Mr. Wyatt were then taken to Central Booking at approximately 11:30 p.m. by three officers.

50. Mr. Mercedes and Mr. Wyatt remained in Central Booking for approximately twenty four hours.

51. Mr. Wyatt was brought upstairs to the jail cells in Central Booking and informed that the District Attorney's Office declined to prosecute his case and that he would be released.

52. Mr. Wyatt was released without receiving any paperwork and never appeared before a judge.

53. Mr. Mercedes was arraigned on the charge of Criminal Possession of a Controlled Substance in the Fifth Degree and Resisting Arrest.

54. Mr. Mercedes' bail was set at \$3,500.

55. Mr. Mercedes' cousin posted bail for him at approximately 12:00 a.m. on August 16, 2010.

56. Mr. Mercedes was released at approximately 5:45 a.m. on August 16, 2010.

57. On August 16, 2011 at approximately 8:30 a.m., Mr. Mercedes was still suffering from numbness in his arm and shoulder as a result the officers' assault.

58. Mr. Mercedes went to Columbia Presbyterian Hospital to have his arm and shoulder examined.

59. At Columbia Presbyterian Hospital the doctor X-rayed his arm and shoulder.

60. The doctor advised Mr. Mercedes that he was to wear a sling for two weeks.

61. These physical injuries caused Mr. Mercedes much anguish, pain and suffering.

62. On April 20, 2011 the criminal charges against Mr. Mercedes were dismissed and sealed.

63. On or about September 15, 2010 and within ninety (90) days of the incident, a Notice of Claim on behalf of Plaintiff Mercedes was served upon NYC.

64. At least thirty (30) days have elapsed since said demand and/or claim upon which this action is in part predicated was presented to NYC for adjustment and NYC has neglected

and/or refused to adjust and/or make payment.

65. This action is commenced within one (1) year and ninety (90) days of the occurrence herein.

**FIRST CLAIM FOR RELIEF:
DEPRIVATION OF FEDERAL CIVIL RIGHTS**

66. Plaintiffs repeat and reiterate the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

67. All of the aforementioned acts of Defendants, their agents, servants, and employees were carried out under color of state law.

68. All of the aforementioned acts deprived Plaintiffs of the rights, privileges, and immunities guaranteed citizens of the United States by the Fourth, Fifth, Eighth, and Fourteenth Amendments to the Constitution of the United States and in violation of 42 U.S.C. § 1983.

69. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers, with the entire actual and/or apparent authority attendant thereto.

70. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and rules of NYC and the NYPD, all under the supervision of ranking officers of said department.

71. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure, or rule of his/her respective municipality/authority, which is forbidden by the Constitution of the United States.

72. By these actions, these Defendants have deprived Plaintiffs of rights secured by the

Fourth, Fifth, Eighth, and Fourteenth Amendments to the United States Constitution, in violation of 42 U.S.C. §1983, for which the Defendants are individually and jointly liable.

SECOND CLAIM FOR RELIEF:
EXCESSIVE FORCE UNDER 42 U.S.C. § 1983

73. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

74. The degree of force used by Defendants was excessive, unreasonable, and unwarranted.

75. Defendants' actions were intentional, willful, malicious, egregious, grossly reckless and negligent, unconscionable, and unprovoked.

76. As a result of the excessive force and brutality, Plaintiff Mercedes sustained multiple injuries to his shoulder, wrist and hand, and endured serious emotional and psychological distress.

77. All of the aforementioned acts of the Defendants constituted excessive force under the laws of the State of New York and the Defendants are liable for said damage.

THIRD CLAIM FOR RELIEF:
ASSAULT AND BATTERY

78. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

79. By the aforementioned actions, the Defendants did inflict assault and battery upon Plaintiff Mercedes. The acts and conduct of the Defendant Police Officers were the direct and proximate cause of injury and damage to Plaintiff Mercedes and violated his statutory and

common law rights as guaranteed by the laws and Constitution of the State of New York.

80. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific bodily injury, pain and suffering, great humiliation, mental anguish, costs, and expenses and were otherwise damaged and injured. Pursuant to 28 U.S.C. §1367, this Court has pendant jurisdiction to hear and adjudicate such claims.

**FOURTH CLAIM FOR RELIEF:
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

81. Plaintiffs repeat and reiterate the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

82. Defendants engaged in extreme and outrageous conduct beyond all possible bounds of decency when they beat, harassed, threatened and arrested plaintiffs.

83. Defendants' extreme and outrageous conduct was intended to inflict severe distress upon plaintiffs.

84. Defendants' outrageous conduct did inflict severe distress upon plaintiffs, which caused plaintiffs to suffer anxiety and mental anguish.

85. All of the aforementioned acts of the Defendants constituted intentional infliction of emotional distress under the law of the State of New York and the Defendants are liable for said damage. Pursuant to 28 U.S.C. § 1367, this Court has pendant jurisdiction to hear and adjudicate such claims.

FIFTH CLAIM FOR RELIEF
MUNICIPAL LIABILITY

86. Plaintiffs repeat and reiterate the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

87. The acts complained of herein were carried out by the Defendants in their capacities as police officers, employees and officials pursuant to the customs, policies, usages, practices, procedures, and rules of NYC and the NYPD, all under the supervision of ranking officers of said departments.

88. Prior to August 14, 2010, NYC and NYPD developed and maintained policies or customs exhibiting deliberate indifference to the Constitutional rights of persons in NYC, which caused the violation of Plaintiffs' rights.

89. It was the policy and/or custom of NYC and NYPD to inadequately and improperly train and supervise its police officers, including the defendant officers, thereby failing to adequately discourage further constitutional violations on the part of its police officers.

90. It was the policy and/or custom of NYC and NYPD to inadequately and improperly investigate complaints of misconduct against police officers filed by inmates in police custody, and acts of misconduct were instead tolerated by NYC, including, but not limited to the following incidents: assault and battery, harassment, negligence, intentional infliction of emotional distress and deliberate indifference to medical needs.

91. The foregoing customs, policies, usages, practices, procedures, and rule of NYC and the NYPD constituted deliberate indifference to the safety, well-being, and constitutional rights of Plaintiffs.

92. The foregoing customs, policies, usages, practices, procedures, and rule of NYC and

the NYPD were the proximate cause of the constitutional violations suffered by Plaintiff as alleged herein.

93. The foregoing customs, policies, usages, practices, procedures, and rule of NYC and the NYPD were the moving force behind the constitutional violations suffered by Plaintiffs as alleged herein.

94. As a result of the above described policies and customs, police officers of NYPD, including the defendant officers, believed that their actions would not be monitored by supervisory officers and that their own misconduct would not be investigated or sanctioned, but instead would be tolerated.

95. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the constitutional rights of plaintiffs.

96. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate officers and were directly responsible for the violation of plaintiffs' constitutional rights.

97. Defendants NYC, as municipal policymakers in the training and supervision of Defendant police officers/employees, have pursued a policy and custom of deliberate indifference to the rights of persons in their domain who suffer violations of their freedom from deprivation of liberty without due process of law in violation of the Fourth, Fifth, Eighth, and Fourteenth Amendments to the Constitution of the United States and 42 U.S.C. § 1983, and the Constitution and laws of the State of New York.

98. All of the foregoing acts by Defendants deprived Plaintiffs of federally protected rights, including, but not limited to, the right:

- a. Not to be deprived of liberty without due process of law;

- b. To be free from unreasonable search and seizure under the Fourth and Fourteenth Amendments to the United States Constitution;
- c. To be protected against violations of his civil and constitutional rights;
- d. Not to have cruel and unusual punishment imposed upon him; and
- e. To receive equal protection under the law.

**SIXTH CLAIM FOR RELIEF:
CONSPIRACY TO INTERFERE WITH CIVIL RIGHTS
UNDER 42 U.S.C. § 1983, 1985, 1986**

99. Plaintiffs repeat and reiterate the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

100. All the defendants, acting with each other individually and on behalf of and under the auspices and control of the City, and under color of law, conspired to injure plaintiffs in their person and property and deprive plaintiffs of their First, Fourth, Fifth and Fourteenth Amendment rights. The defendants jointly caused such deprivation of rights by acting in concert to disseminate false information concerning the plaintiffs and by disseminating false information that lacked any reasonable basis or probable cause to support it that the plaintiffs committed a crime, and/or to charge them with a crime, and/or to arrest them.

101. The defendants further deprived the plaintiffs of their due process rights specifically by conspiring to and assisting in the arrest of the plaintiffs without probable cause and participating in the prosecution of plaintiffs; by denying the plaintiffs their First, Fourth, Fifth and Fourteenth Amendment rights via a conspiracy to deprive the plaintiffs of their liberty and taking their property without due process and compensation; conspiring together to cover up the misconduct they committed; and preventing the plaintiffs from being compensated for wrongful

arrest, for the loss of their constitutional rights, and for the emotional harm incurred.

102. The aforesaid actions by the defendant police officers were done pursuant to an official municipal policy or custom of the city and state, which policy involved the indiscriminate detention, interrogation, intimidation, denial of medical attention, and prosecution of individuals who were not engaged in criminal conduct, and for the purpose of thwarting the fair administration of justice.

103. The defendants' failure to stop these wrongful acts and actions constitutes a breach of their duty to do so under 42 U.S.C. § 1986.

104. The defendants knew or should have known that the misconduct and false and fabricated accusations and/or charges against plaintiffs were violative of their First, Fourth, Fifth and Fourteenth Amendment rights to due process and equal protection, and were tantamount to unequal protection under the law, in violation of the plaintiff's fundamental rights under the Constitution.

105. Said defendants had the power to prevent the continued due process violations against the plaintiffs, yet had failed to prevent the dissemination of false information and/or to dismiss the fabricated accusations and charges against plaintiffs, and/or to protect the plaintiffs from the unwarranted and potential harm and penalties of said charges.

106. Defendants herein, their agents, servants and employees, motivated in part by racial and/or ethnic animus, conspired to deprive plaintiffs of federal civil and constitutional rights, in violation of 42 U.S.C. § 1985.

107. All of the aforementioned acts of Defendants constituted a violation of plaintiffs' civil rights under the United States Constitution and 42 U.S.C. § 1983, 1985, and 1986.

**SEVENTH CLAIM FOR RELIEF:
FALSE ARREST**

108. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

109. As a result of Defendants' aforementioned conduct, Plaintiff Wyatt was subject to an illegal, improper, and false seizure and arrest by the Defendants and taken into custody and caused to be falsely imprisoned, detained, confined, incarcerated, and prosecuted by the Defendants in criminal proceedings, without any probable cause, privilege, or consent.

110. As a result of his false arrest, Plaintiff was subjected to severe emotional distress, humiliation, ridicule, and disgrace and was deprived of his liberty.

111. All of the aforementioned acts of the Defendants constituted false arrest under the laws of the State of New York and the Defendants are liable for said damage. Pursuant to 28 U.S.C. § 1367, this Court has pendant jurisdiction to hear and adjudicate such claims.

**EIGHTH CLAIM FOR RELIEF:
FALSE IMPRISONMENT**

112. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

113. As a result of his false imprisonment, Plaintiff Wyatt was subjected to severe emotional distress, humiliation, ridicule, mental anguish and disgrace and was deprived of his liberty.

114. All of the aforementioned acts of the Defendants constituted false imprisonment under the law of the State of New York and the Defendants are liable said damage. Pursuant to

28 U.S.C. § 1367, this Court has pendant jurisdiction to hear and adjudicate such claims.

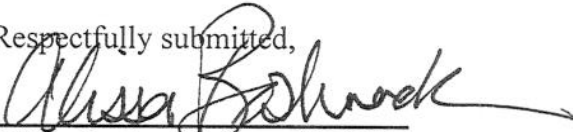
PRAYER FOR RELIEF

WHEREFORE, Plaintiff demands judgment and prays for the following relief, jointly and severally, against the Defendants:

1. Special and compensatory damages in the amount of FIVE HUNDREND THOUSAND (\$500,000.00) DOLLARS; and
2. Punitive damages in the amount of FIVE HUNDRED THOUSAND (\$500,000.00) DOLLARS; and
3. Reasonable attorney's fees and costs; and
4. Such other and further relief as this Court deems just and proper.

DATED: New York, New York
October 24, 2011

Respectfully submitted,



Alissa Boshnack, Esq. (AB0977)

FISHER, BYRIALSEN & KREIZER PLLC
Attorney for Plaintiff
291 Broadway, Suite 709
New York, New York 10007
(212) 962-0848